

1.

CASE #	CASE NAME	HEARING NAME
CVPS2104906	MARTINEZ ARITA VS HALO MEDICAL GROUP	SPECIAL MOTION BY DEPARTMENT OF HEALTH CARE SERVICES

Tentative Ruling: No tentative ruling. Hearing is scheduled for 10.08.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2200362	GREGORY SCOTT MCALLISTER, AN INDIVIDUAL VS R. SCOTT KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005	MOTION FOR RELIEF FROM JUDGMENT BY R. SCOTT KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005, KACI L. KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005

Tentative Ruling: No tentative ruling. Hearing continued to 8.18.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507831	MORALES VS CHRISTOPHER PYLE, CPA, INC.	MOTION FOR LEAVE TO AMEND ON COMPLAINT OF CASTULA MORALES BY CASTULA MORALES

Tentative Ruling: California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“if the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment